

Capital One, N.A. v. Yadira Rodriguez, 25LC-1330

Hearing: Motion to Vacate Dismissal and Enter Judgment Pursuant to Settlement

Date: September 17, 2026

TENTATIVE RULING

Capital One, N.A. (Plaintiff) filed this collection action on November 7, 2025, against Yadira Rodriguez (Defendant). Defendant was served by personal service on November 15, 2025. In late December, 2025, the parties submitted a Stipulation Agreement¹ setting up a payment plan and dismissal of the action subject to the Court retaining jurisdiction under Code of Civil Procedure section 664.6. On January 5, 2026, the Court dismissed the action “under [the] conditions stipulated to by the parties, with the court retaining jurisdiction under Code of Civil Procedure section 664.6.”

Plaintiff now seeks to set aside the dismissal and have judgment entered pursuant to the terms of the Stipulation Agreement. No opposition has been filed despite proof of service. Defendant has never appeared in the action and has not provided an address to the Court or in the Stipulation Agreement. At the initial hearing, the Court requested Plaintiff submit a declaration confirming notice was served to Defendant’s proper address.

On September 3, 2026, Plaintiff filed the Declaration of Michaela Cox which describes Plaintiff’s efforts to serve Defendant with the moving papers. The declaration confirms that Defendant received, signed, and returned the stipulation at the address Plaintiff used to give notice of the subject motion and none of the documents mailed to that address have been returned to sender. The declaration is sufficient to show that Defendant was served with the subject motion at her last known and only address provided to Plaintiff and the papers were not returned as undeliverable.

The Stipulation Agreement required Defendant to make a one-time payment of \$543.90 on or before November 26, 2025; followed by a minimum of \$500.00 on or before the 26th day of each and every month commencing in December 26, 2025, until Defendant paid the Judgment Amount of \$2,543.90. (RJN, Exh. B, ¶ 4.) Defendant further agreed that in the event of default, Plaintiff would be entitled to judgment for the principal sum of \$2,543.90 plus court costs pursuant to a memorandum of costs less credits for payments made. (Request, Exh. B ¶ 4.)

Defendant never made a payment and defaulted. (Declaration of Smita Suman (Suman Decl.), ¶ 4.) Plaintiff provided Defendant with 10-days written notice of the failure to make payments and Plaintiff’s intention to request entry of judgment as required by the Stipulation Agreement. (Suman Decl., ¶ 5; Exh. A.) The balance due, owing and unpaid is the principal sum of \$2,543.90 plus court costs in the sum of \$378.61 for a total judgment of \$2,922.51. (Suman Decl. ¶¶ 6, 7; Memorandum of Costs filed March 27, 2026.)

¹ Plaintiff’s request for judicial notice of the Stipulation Agreement is granted. (RJN, Exh. B.)

Plaintiff seeks entry of judgment pursuant to the terms of the Stipulation Agreement. The moving papers were properly served and the motion is unopposed.

Code of Civil Procedure section 664.6 provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Plaintiff has met the requirements for Court enforcement of the Stipulation. The Court grants Plaintiff's motion and will set aside the dismissal and enter judgment in favor of Plaintiff and against Defendant in the amount of \$2,922.51.